

CRIMINAL LAW

- New York: Penal law of NY
- MBE: Common law
- **Jurisdiction:** Territorial (anywhere the crime took place): can be more than one state
 - If any **act** part of the crime took place in the state
 - Or any **result** took place in the state
- **Essential Elements of Crimes**
 - **Physical Act** (New York rule and CL rule are the same)
 - *Voluntary* (brain tells your muscles to move – almost everything) *bodily movement*:
 - On Bar three forms of involuntary acts
 - Act is not a product of own **volition** (someone else moves you – carried, pushed):
 - Actor is **unconscious** (e.g., sleepwalking):
 - Epileptic seizure or **reflex**
 - *Omission*:
 - Legal **duty** to act.
 - **Statute** (very few): e.g., failure to file tax return, duty to report (child abuse – doctors, teachers, clergy)
 - **Status relationship**: Parent OR Spouse
 - **Contract**: Lifeguard, babysitter, doctor (implied agreement)
 - **Voluntary Assumption of Care**: starting to help someone can then impose a duty to finish the rescue
 - If you start to help, you may dissuade others from helping (e.g., swimmer example).
 - **Creation of the Peril**: I put victim in danger (I playfully push friend in pool and he can't swim; you hit kid that darts out).
 - **Knowledge** of the facts giving rise to the duty: (e.g., you don't know that it's your kid).
 - **Ability** to help: If you can't swim, don't have to jump into pool (be careful: may be required to summon lifeguard, call 911, throw life ring).
 - **Mental State**:
 - **Common law**
 - **Specific Intent**: Intent to the act + intent to cause particular result
 - Assault
 - First degree premeditated murder
 - Larceny
 - Embezzlement
 - False pretenses
 - Robbery
 - Forgery
 - Burglary
 - Solicitation
 - Conspiracy
 - Attempt
 - Two defenses:
 - Voluntary intoxication
 - Unreasonable mistake of fact

- **General intent:** Defendant must know what he is doing and the circumstances (can generally infer from the act), but need not intend any particular result.
 - Battery
 - Rape
 - Kidnapping
 - False imprisonment
 - If you run across a crime we haven't talked about, assume general intent
- **Malice:** intentionally or with reckless disregard of an obvious/known risk
 - Common law murder (not first degree)
 - Arson
- **Strict Liability:** Act alone is all that matters
 - Public welfare offenses (regulatory, morality): small penalty
 - Corrupting the morals of a minor (tobacco, obscene literature)
 - Statutory rape: big penalty
 - **Mistake of fact is no defense.**
- **In New York**, mental states have been reorganized along the lines of the MPC
 - **Intentionally/Purposefully:** D meant to do it
 - **Knowingly/Wilfully:** D was aware of what he was doing
 - **Recklessly:** Knows about a substantial and unjustifiable risk and consciously disregards that risk (knowing the risk and not caring).
 - **Negligently:** Should have known about substantial and unjustifiable risk (being stupid)
 - **Strict Liability:**
 - Statutory rape: victim's age
 - Drug crimes: quantity/weight of narcotics
 - Hypothetical: Defendant is really speeding (90mph) loses control of the car and kills Victim. When police respond, they find white powdery substance in D's car.
 - Intentional Murder: "I didn't meant to do it." That's a good defense.
 - Knowingly possessing cocaine: "I didn't know it was there" or "was cocaine".
 - Reckless homicide: "I didn't realize"
 - Negligent homicide: "Under the circumstances, my conduct was reasonable."
 - Strict liability (speeding): "I didn't do 90mph"
- **Causation** (homicide): Applies to all result crimes. Generally comes up in homicide question.
 - **Actual causation/Cause in fact:** "But for" D's conduct, would victim have died?
 - If no, then D is actual cause.
 - If victim would have died anyway, then D is not an actual cause.
 - An *accelerating cause* is an actual cause (e.g., D poisons victim, I come along and shoot victim killing victim, I have hastened victim's death, thus I am an actual cause).
 - **Proximate causation:** Is the bad result (usually a death) the natural and probable consequence of the Defendant's conduct.
 - **Unforeseeable** intervening event removes proximate causation (lightning strikes)
 - Foreseeable: victims going to the hospital and get infection, medical malpractice, eggshell victims.
 - **Year and a day doctrine:** At CL, a homicide could not prosecuted unless the death occurred within a year and a day of the homicidal act. **New York has abandoned it:** 25 years later victim dies, coroner says cause of death: gunshot = homicide.

- **Concurrence** (burglary & larceny): Physical act and mental state must concur (happen at the same time).

Crimes against the Person

- **Degrees:** In New York, make sure to memorize each degree (usually second degree). If you see something that looks more serious. If it looks less serious, call it third degree. Then extrapolate/guess to get to the right answer. Three facts:
 - **Weapon:** As a general rule, if you add a weapon increase a degree, if you take away a weapon, take away a degree.
 - **Injury:** Add an injury, add a degree. Take away an injury, take away a degree.
 - **Physical Injury:** substantial pain (really hurts) (e.g., breaking a bone)
 - **Serious physical injury:** permanent or life-threatening (any stabbing, gunshot, poking eye out, cutting ear off).
 - **Not an injury:** slap in the face
 - **Quantity:** (generally property crimes): Money (theft crime), drugs (narcotics crime)
- **Battery:**
 - *Common law:* unlawful application of force to another resulting in bodily injury or offensive touching (punch in the nose).
 - Mental state: General intent (D need not intend to cause injury or offend, just be generally aware of what he's doing – can generally infer awareness from the act)
 - **There is no battery in New York**
- **Assault:** Specific intent
 - *Common law:*
 - Attempted battery (e.g., take a swing and miss)
 - Intentionally making the victim think you're about to commit a battery
 - If you're just joking around, you won't have intent
 - **In New York: Intentionally injuring another person.**
 - Second degree assault: intentionally causing serious physical injury.
 - First degree assault: add a weapon (can't add injury, that would be homicide)
 - Third degree: take away an injury (physical injury only).
 - Cf. Common law: you must have injury – there is no offensive touching (slap in the face is not an assault).
 - **Attempted assault** requires a **specific intent to assault** (merely creating an apprehension of injury is not assault, but would be *menacing*).
- **Homicide:**
 - *Common Law*
 - **Murder:** causing the death of a person with malice aforethought
 - **Mental state:** malice (intent to kill, intent to inflict great bodily injury (serious physical injury, supra), extreme recklessness (depraved heart), felony murder)
 - **Intent:**
 - Dangerous weapon: if gun or knife, it will be murder.
 - CL definition did not have degrees, but then modified
 - **1st degree:** premeditated and deliberate (cool, calm, plans) (specific intent crime: requires intent to kill)
 - **2nd degree:** malice crime

- **Extreme recklessness:** shooting wildly into a crowd, letting a lion out of a cage.
 - **Felony Murder**
 - **Doctrine of transferred intent:** If defendant intends to kill one victim, but instead accidentally kills another CL will transfer the intent so that D is guilty of murder.
 - **Voluntary Manslaughter:** Intentional killing committed after “adequate provocation”
 - **Adequate provocation:** Passion + Reasonable (this is key)
 - Sudden and intense passion in the mind of an ordinary person (on Bar: D finds spouse in bed (must be spouse, not g/f or fiancée) or victim assaults the D).
 - Defendant must actually **be** provoked
 - Defendant must not have time to cool off
 - Defendant must not have cooled off
 - **Involuntary Manslaughter**
 - Killing with criminal negligence or killing committed during a crime (misdemeanor manslaughter)
- O NEW YORK HOMICIDE
- **Intentional Killings**
 - **First degree murder** is intentional killing with **special circumstances**
 - Intentionally killing a **cop** (prison guards, court security, sheriffs) in the line of duty
 - Intentionally killing as part of **witness intimidation**
 - Intentional killing in **Murder for hire** scheme
 - Intentional killing during a **serious felony** (not felony murder, which is accidental)
 - Basic intentional killing is **second-degree murder**.
 - (Reasonable) extreme emotional disturbance will get you from second degree murder to **1st degree manslaughter**
 - *E.g.*, wife in bed: At common law, voluntary manslaughter and “adequate provocation”; in New York, 1st degree manslaughter and “extreme emotional disturbance”
 - Extreme emotional disturbance is an **affirmative defense** (preponderance of the evidence)
 - **Unintentional Killings**
 - **Depraved indifference (extreme recklessness)** – firing in crowd, lion out of cage (second degree murder)
 - *Extreme recklessness:* “utter disregard for human life” (expose multiple people to risk of death, brutal killing (accidental killing from torture))
 - **Intent to cause serious physical injury:** (less serious than CL) – first degree manslaughter
 - **Basic recklessness:** Second degree manslaughter
 - **Criminal negligence:** (should have been aware): second degree manslaughter
 - **Hypothetical:**
 - Shoot in a classroom and say “everybody duck”, somebody dies: extreme reckless murder: **second degree murder**.

- Shoot someone in the kneecap, and they die: intent to cause serious physical injury, **first degree manslaughter**.
 - Cleaning loaded gun, it's pointed at someone and they accidentally get shot (not extreme recklessness, but substantial and unjustifiable risk that I was aware of): **second degree manslaughter**.
 - "Don't worry the guns not loaded, whoops, I guess it was." If I wasn't aware the risk the gun was loaded, not reckless (must be *aware*). If should have been aware – **criminally negligent homicide**.
- **Felony Murder** (special topic) *Don't forget!
 - **Common law**: any death caused during the commission of or attempt to commit a felony. If the maximum punishment for a crime is greater than one year, felony.
 - Provides for **vicarious liability**. This means a Defendant can be responsible for criminal acts committed by someone else.
 - Six limitations:
 - Defendant must be **guilty** of underlying felony.
 - Felony must be **inherently dangerous** (kidnapping, rape, burglary, robbery). *Not* larceny, forgery.
 - Felony must be **separate** from the killing itself (independent felonious purpose rule – not battery, assault).
 - **During** the felony or during immediate **flight** (spot the issue)
 - **Foreseeable**
 - Dead person is not a **co-felon** (New York too). However, *the killer need not be a felon* – e.g., police officer shoots teller by accident.
 - **New York** is simpler: second degree murder + two differences:
 - Limited to **six specific crimes**: Burglary, Robbery, Arson, Kidnapping, Forcible rape, escape (from confinement – jail, police custody).
 - **Non-slayer defense**: limited affirmative defense for someone who did not do the killing – D must prove by preponderance that:
 - Did not participate in **homicidal act**
 - Defendant did not have **deadly weapon**
 - D had **no reason to believe** co-felons had deadly weapon
 - D had no reason to believe co-felons intended to do anything **likely result in death**.
 - If happened during felony, felony murder.
 - Intentional killing during serious felony – first degree intentional murder.
- **New additions to NY homicide law**:
 - First degree/second degree murder distinction at CL and New York used to be the death penalty. Now that New York no longer has the death penalty, the distinction is life without parole and 25-to-life.
 - **Aggravated homicide**:
 - If you kill someone intentionally, second degree murder. If you kill a cop intentionally: **aggravated second degree murder**.
 - If you kill someone recklessly, second degree manslaughter; if cop, aggravated second degree manslaughter.

- o And so on with negligence.
- **Drunk driving/vehicular homicide:**
 - o D drives drunk and kills someone: vehicular homicide
 - If prior DWI conviction, first degree vehicular homicide
- **False Imprisonment:** Unlawful confinement of a person without his consent
- **Kidnapping:**
 - o **Common law:** false imprisonment that involves **moving** the victim or **concealing** the victim in a secret place.
 - o **New York:** abducting someone
 - **Second degree:** basic abduction
 - **First degree:** basic abduction + (one of the following):
 - Ransom
 - Restrain with intent to injure
 - Victim dies
 - o On the Bar, if there is a kidnapping and the victim dies accidentally, there is also a felony murder. If killed intentionally, first-degree murder. Be on the Lookout when someone dies, analyze murder possibilities.
- **Sex offenses:**
 - o **Rape:**
 - *Forcible* - Nonconsensual sex accomplished by force, threat of force, or when victim is unconscious
 - Consent is a defense.
 - It wasn't at CL, but now rape is gender neutral and no longer a marital immunity
 - *Statutory* - Sex with a victim under age of consent
 - Strict liability offense
 - Consent is not a defense
 - Age of consent in New York is 17
- **PROPERTY CRIMES**
 - o **Theft**
 - Common Law:
 - **Larceny:** Trespassory taking and carrying away of the personal property of another with intent to permanently deprive.
 - o *Trespassory:* without permission/wrongful
 - o *Taking + carrying away:* move it (asportation)
 - o *Personal property:*
 - o *Of Another:* the key is **possession** – property that someone else has lawful possession of. So you can commit larceny on your own property if someone else has lawful possession: e.g., stealing a car you lease to someone else.
 - o *Mens rea:* intent to permanently deprive
 - o **A taking under a claim of right (I think it's mine) is not larceny because I lack the specific intent to permanently deprive the owner.**
 - The common law created a doctrine called “continuing trespass”: if the initial taking is not wrongful, then later realize it wasn't, then I form intent that is not larceny because no concurrence; however if the initial taking is wrongful (e.g., I rummage through someone's

bag for phone to borrow, then decide to keep, then continuing trespass and no concurrence problem.

- **Embezzlement:** fraudulent conversion of the personal property of another by a person already in lawful **possession** of that property.
 - Defendant already has lawful possession and then steals it (e.g., fighting couple gives lawyer/trustee a cell phone to hold, I have lawful possession, then decide to keep it). Also, high level employee (or control + discretion). *Cf.* low level employees typically don't have lawful possession (no control or discretion).
 - **Mental state:** intent to defraud (if you intend to give it back, not embezzlement, but it must be exact property in same condition. Money is **not** fungible).
- **False Pretenses:** Obtaining title to the personal property of another by an intentional false statement with the intent to defraud.
 - *False statement: past or present event*, not a future event. (e.g., you give me your cell phone, and I'll give you this first edition book (with forged signatures) that is false pretenses. However, give me your cell phone and I'll give you \$100 tomorrow, caveat emptor. *E.g.*, No-account/insufficient funds check.
 - If by lying all I get is possession, then it is larceny by trick (e.g., lend me your cell phone for a week, I'll give you valuable book, then larceny by trick).
- **In New York EVERYTHING IS LARCENY**, determined by amount. **Five degrees:**
 - **\$0 - \$999:** petite larceny
 - **\$1000:** fourth degree
 - **\$3000:** third degree larceny
 - **\$50,000:** second degree larceny
 - **\$1,000,000:** First degree
 - **Remember larceny is not the basis for felony murder in New York.**

o **Violent theft**

▪ **Robbery:**

- **Common Law:** Larceny from another's person or presence by force or threat of immediate injury.
 - Presence: can be stolen in your car while you're in it.
 - **Not** pick pocketing, snatching a chain **is**.
 - Threat must be **immediate** injury.
- **New York:** forcible stealing property, three degrees:
 - 3rd degree: forcibly stealing property
 - 2nd degree:
 - Two+ people acting **together**
 - Victim is injured
 - Property stolen is a car (car-jacking)
 - Give me your wallet or I'll beat you is third degree. Give me your car or I'll beat you is second degree.
 - 1st degree: forcible stealing +
 - Victim is seriously injured; or
 - Defendant uses firearm (not just any weapon)

- If D can prove firearm was unloaded or unoperable, then moves to second degree.
 - Any degree of robbery is sufficient for felony murder. If someone is killed intentionally + first degree murder.
 - **Extortion:**
 - *Common law:* Larceny from another's person or presence by threat of future harm
 - **Blackmail:** larceny by threat of embarrassment: blackmail
 - **Receipt of stolen property:** Knowledge that property is stolen
 - **Possession of stolen property:** Knowledge that property is stolen **and** that you possess (control) it.
 - Control: within your reach, dominion & control (but need not necessarily be in your pocket)
 - **Forgery:** making a false writing or altering an existing writing with the intent to defraud
 - **Uttering:** offering a forged instrument with the intent to defraud.
 - *E.g.*, I want to steal from a bank. I made up a fake ID car (forgery). Then I go to the bank and I show my ID (uttering), the bank gives me money (larceny).
- **Crimes against habitation**
- **Burglary:**
 - **Common law:** breaking and entering the dwelling of another at night with the intent to commit a felony inside.
 - **Breaking:** creating or enlarging an opening by at least minimal force (breaking a window, opening a door, opening an unlocked window; but not climbing through a window already opened)
 - **Entry:** some part of your body/tool must cross plane of the structure (throw rock through window, punch hand through window, not just opening the door, must walk through)
 - **Dwelling:** houses, not barns or stores.
 - **Of another:** can't burglarize your own house.
 - **At night**
 - **Specific intent:** with intent to commit felony at the time of the entry (requires concurrence).
 - **New York**
 - **3rd Degree:** (*merely*) entering or remaining (*deals with concurrence problem at CL*) unlawfully in a building with the intent to commit a (*any!*) crime inside.
 - **2nd Degree:**
 - Someone (not participating in burglary) gets **injured**
 - Defendant carries a weapon
 - Dwelling
 - **1st Degree:** Knowledge that it is a dwelling **and** someone gets injured or carrying a weapon.
 - If someone dies, second degree murder.
 - If killed intentionally, first degree murder.
 - **Arson:**
 - **Common law:** Malicious (intentionally or recklessly) burning of another.
 - **Burning:** material wasting of the structure (some part of the structure doesn't exist anymore – not smoke damage)

- o Unless question tells you otherwise, assume arson extends to any structure.
 - o **Of another.**
- **New York:**
 - o **Fourth degree:** reckless burning
 - o **Third degree:** intentional burning
 - o **Second degree:** D knows/should have known someone was inside
 - o **First degree:** 2nd degree + explosive/incendiary device
 - o Accidental killing during arson: felony 2nd degree
 - o Intentional killing during arson: 1st degree
- **Vicarious/accomplice liability**
 - o **Accomplice:** aids or encourages another person with the intent to encourage the crime.
 - *Principal:* commits the crime
 - *Accomplice:* aids/encourages
 - Not accomplices:
 - Mere **presence**, you must help
 - Mere **knowledge**, unless you affirmatively encourage/help (includes selling ordinary goods at ordinary houses: e.g., “I want a bat that’s strong so when I crack it over neighbor’s head it won’t break” if I merely sell him the bat, not an accomplice.
 - The **victim/members of protected class:** e.g., underage person in statutory rape, underage kid buying liquor illegally
 - **Accomplices are guilty of the crime as if they committed it**, even if the principal is **not** prosecuted.
 - **Change of mind:**
 - **Common law:**
 - o If all you did was **encourage**, all you have to do is **renounce/discourage**.
 - o If you have actually helped (“let me get you started with your drug business”), you must make an affirmative effort to prevent the crime from happening (stop him or call the police)
 - **New York:** One way to withdraw, you have to take a substantial step.
 - o **Accomplice Witness Rule:** a Defendant cannot be convicted of a crime based upon the uncorroborated testimony of an accomplice (If prosecution uses accomplice to testify against the Defendant, need more evidence).
- **Inchoate Crimes:**
 - o **Solicitation:** Asking someone to commit a crime with the intent that they do it
 - o **Conspiracy:** An agreement between two or more people to commit a crime + an overt (minimal) act (any step in preparation for the crime) in furtherance of the crime.
 - **Agreement:**
 - Can be **implied:** two people working together (inference)
 - **Common Law:** actual meeting of two guilty minds (can’t be guilty of conspiracy with someone who is just pretending).
 - o At CL, can’t conspire with an undercover, unless there is someone (3+)
 - **New York:** (unilateral) can be convicted even if the other was pretending
 - **Acquittals**
 - **Common Law:** if all co-conspirators are acquitted, then the last can’t be convicted.
 - **New York:** (unilateral) can be convicted, even if everyone else was acquitted

- **Specific intent:** Intend to agree and intend to achieve the object of the conspiracy.
- **Vicarious:**
 - At CL, co-conspirators can be vicariously liable for other crimes committed in furtherance of the conspiracy if those crimes are foreseeable.
 - **No vicarious liability in New York.**
- **Attempt:**
 - **Act:**
 - **Common law test:** “dangerous proximity”
 - **New York:** “dangerous proximity”: Driving around looking for, but not finding him, is not dangerously close.
 - **Model Penal Code** has a *different* test: substantial step (driving around looking for victim is not enough). If “substantial step” it is probably a wrong choice on MBE.
 - **Specific intent:** May sometimes have to infer from the conduct.
 - Turn around three times, close eyes, and shoot the apple off the student in the 3rd row – if you kill the student, guilty of homicide (yes). If you shoot apple and don’t kill, no attempt to murder.
 - **You cannot “attempt” a reckless or negligence crime.** You must *intend* the crime.
 - **Impossibility:**
 - **Factual impossibility** is **Not** a defense: it is impossible to commit the crime b/c of some circumstances beyond the Defendant’s control.
 - Pickpocket tries to steal from me, but nothing in pocket, he is still guilty of attempt.
 - Defendant buys and resells white substance thinking it is cocaine, it is flour, he may be guilty of attempted narcotics dealing.
 - **Legal impossibility IS** a defense: what the Defendant thought he was doing was not illegal.
 - Defendant thinks it’s a crime to possess white flour
- **Defenses to Inchoate Crimes**
 - **Withdrawal:**
 - At *common law*, there was no withdrawal for solicitation/conspiracy; however, if you do withdraw, you’re no longer vicariously liable for the consequences of the crime.
 - *New York* allows withdrawal or “**Renunciation**”: voluntary and completely renounces and prevents the crime from happening.
 - Voluntary and complete must be motivated by a **guilty conscience** (not a fear of being detected).
 - Renunciation is an **affirmative defense**: Defendant must prove.
 - **Merger:**
 - Lesser included offenses **merge** with greater offense so Defendant cannot be convicted of both (every element of lesser offense is element of greater offense).
 - **Inchoate:**
 - **Common law:** solicitation and attempt merge with each other and the completed crime, but not conspiracy.
 - **New York:** attempt merges, but solicitation and conspiracy do not.

- **Defenses**

o Capacity

▪ Insanity (affirmative defense):

- *M’Naughten Rule* (main CL test): as a result of mental disease/defect, did not know act was **wrong** or did not understand the **nature and quality** of his action (did not know what he was doing).
- *Irresistible impulse*: Defendant is unable to control his actions/conform his conduct to law as a result of mental disease/defect (fact question).
- *Durham* or *Product* test: Act is the product of mental disease or illness (the broadest test – even though I knew it was wrong, I could have resisted – not usually on the Bar or is a wrong answer).
- *MPC Irresistible impulse* + *M’Naughten*: D didn’t have capacity to appreciate the criminality of his conduct **or** conform conduct to law.
- **New York**: Defendant **lacks substantial capacity to know or appreciate either the nature/consequences of his conduct or that his conduct was wrong** (not irresistible impulse test!).
- **Cf. Incompetence** – because of their mental disease or defect they can’t be put on trial (based on constitutional right to attorney, violates 6th A right to fair trial).

▪ Intoxication:

- Involuntary (against your will or without your knowledge): is a defense to **all** crimes (not addiction, peer pressure, drank too much).
- Voluntary: can be a defense to specific intent crimes **if** it prevents the Defendant from forming the required **specific intent**.
 - o Not a defense to reckless conduct.
- **New York**: (No specific/general intent crimes): can be defense to intent or knowledge crimes, if the intoxication negates the required intent or knowledge.
 - o **No** defense to recklessness or negligence.

▪ Infancy: Being too young.

• Common Law rule:

- o < 7 y/o: No criminal responsibility
- o < 14 y/o: rebuttable presumption against criminal prosecution
- o 14+: prosecuted as an adult

• New York:

- o 13+ y/o can be prosecuted for second degree murder (not for other serious crimes like rape).
- o 14 & 15 y/o can be prosecuted for serious crimes against persons or property (but not petite larceny).
- o 16 y/o can be prosecuted for anything/adult.

o Justification:

▪ Self-defense: Generally a homicide question. Focus on:

- Degree of **force** (deadly or non-deadly)
 - o Non-deadly if **reasonably necessary** to protect against **immediate use** of unlawful force against himself.
 - o Deadly force (also in New York): **imminent threat** of death or serious injury, defender is **without fault** (if I start the fight and the other guy pulls a gun, I’m in trouble. If I start, I must withdraw from my aggressor status), Defendant is required to retreat (New York, you must try to retreat).
 - o **Common law/ “True Man” rule**: Need not retreat.

- In New York, if I can retreat in complete safety, I must, unless I'm in my own home *and* not the initial aggressor (e.g., guy comes at you with deadly fists and you are in car and can drive away, must drive).
- **Reasonableness:**
 - **In New York:**
 - Self defense, if it is reasonable.
 - Murder, if it is not reasonable.
 - *In some states, if it is unreasonable belief, then voluntary manslaughter (imperfect self-defense).*
- **Deadly force to prevent a crime:**
 - At **CL**, non-deadly force can be used to prevent a felony; deadly force can only be used to prevent a felony dangerous to human life.
 - In **New York**, deadly force can be used to prevent **kidnapping, rape, burglary, or robbery** (even the lesser degrees, if that's the only way to keep the crime from happening).
- Self defense is a regular defense in New York: prosecution must prove that the Defendant's belief was unreasonable, threat was not imminent, or that Defendant could retreat.
- **Duress**: if defendant forced to commit a crime under threat of imminent or serious bodily injury (not addiction, no embarrassment).
 - At **Common Law**: Not a defense to homicide.
 - In **New York**: it is an affirmative defense. Also, it can be used as a defense to homicide.
- **Entrapment**: unfair temptation (very narrow) – so long as criminal design originated with the police **and** Defendant was not predisposed (fact specific).
- **Mistake of law**: not a defense, unless "knowledge" is an element of the defense (selling a gun to a *known* felon). Ignorantia juris non excusat.
- **Mistake of fact**: *sometimes* a defense.
 - **Common Law**
 - Reasonable mistake is a defense to any crime, except a strict liability crime.
 - Unreasonable mistake is a defense to a specific intent crime.
 - In **New York**: mistake of fact is a defense if it negates the required mental state (intent or knowledge or recklessness, but *not* negligence).